The safety of large fishing vessels is a key priority for the Parties and Member States of the International Maritime Organization (IMO). The first attempt to regulate this larger fishing vessel sector at the Organization led to the adoption of the Torremolinos International Convention for the Safety of Fishing Vessels, 1977. During the 1980s it became clear that an insufficient number of countries were ever going to ratify the Convention. This led to the adoption of the T orremolinos Protocol of 1993 relati ng to the Torremolinos International
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adoption of the T orremolinos Protocol of 1993 relati ng to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977 (1993 Torremolinos Protocol). Again, the rate of ratifications was insufficient to allow the 1993 Torremolinos Protocol to enter into force. This was further amended by the Cape Town Agreement of 2012 and this Interim Guidance is intended to assist Parties and Member States in ratifying and implementing this Agreement.

This Interim Guidance sets out advice for Parties and Member States who may have already ratified the Agreement as well as for those who have not yet done so. It also contains Interim Guidance for Parties and Member States who have pre -existing higher safety standards and how these can be safeguarded.

The Interim Guidance is structured in two parts. Part A deals with the articles of the Agreement and the technical chapters of the annex to the Agreement. Part B of the Interim Guidance
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and the technical chapters of the annex to the Agreement. Part B of the Interim Guidance contains additional information which, while not forming part of the Agreement, is provided for the information of Parties and Member States. The Interim Guidance also contains a number of appendices which may be helpful.

It is the prerogative of each ratifying Party to implement the requirements of the Agreement in accordance with its own national legal framework as well as the operational arrangements applicable within its jurisdiction.

PART A INTERIM GUIDANCE FOR IMPLEMENTATION

SECTION 1 GENERAL ASPECTS

1.1 Introduction

1.1.1 The Cape Town Agreement of 2012 on the Implementation of the Provisions of the
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SECTION 1 GENERAL ASPECTS

1.1 Introduction

1.1.1 The Cape Town Agreement of 2012 on the Implementation of the Provisions of the Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977 (hereinafter referred to as "the Agreement "), is the only internationally updated and binding instrument that addresses the design, construction and equipment of fishing vessels. It is recognized that the entry into force and implementation of the Agreement would make a significant contribution to the safety of ships in general and the safety of fishing vessels in particular.

1.1.2 The Interim Guidance aims to assist Parties and Member States in effectively implementing the provisions of the Agreement into their national laws, regulations and other measures.1

1.1.3 In addition to the Interim Guidance, chapters 2 and 3 of the Implementation Guidelines
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measures.1

1.1.3 In addition to the Interim Guidance, chapters 2 and 3 of the Implementation Guidelines on part B of the Code, the Voluntary Guidelines and the Safety Recommendations provide guidance related to administrative requirements and legal implications, respectively, which may also be useful to Administrations when developing their own laws and regulations or other measures for the safety of fishing vessels, including those related to the implementation of the Agreement. Furthermore, part B of the Code of Safety for Fishermen and Fishing Vessels , 2005 Edition would serve as a guide for Administrations in developing provisions for vessels of 24 metres in length and over but less than the length limit prescribed in chapters IV, V, VII and IX of the Agreement, as called for in paragraphs (4) and (5) of article 3 of the 1993 Torremolinos Protocol.

1.2 Purpose

1.2.1 The main purpose of the Interim Guidance is to assist Parties and Member States in
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Torremolinos Protocol.

1.2 Purpose

1.2.1 The main purpose of the Interim Guidance is to assist Parties and Member States in

the implementation of the provisions of the Agreement. It is therefore expected that Member States which are planning to deposit an instrument of ratification, acceptance, approval or accession, as appropriate, of the Agreement could benefit from this Interim Guidance.

1 The Interim Guidance may be applied in recognition of the broader international duties and obligations of Parties, Member States and flag States regarding the flagging and control of fishing vessels, together with their responsibilities to manage fishing and fishing -related activities in a manner that ensures the conservation and sustainable use of living marine resources and ensuring decent onboard working and living conditions for fishing vessel personnel. Parties, Member States and flag States may, in this regard, be guided by the following instruments, inter alia:

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guided by the following instruments, inter alia:

.1 ILO's Guidelines on flag State inspection of working and living conditions on board fishing vessels;

.2 FAO Code of conduct for responsible fisheries (article 8 fishing operations);

.3 FAO Agreement on Port State Measures to Prevent, Deter and Eliminate Illegal, Unreported and Unregulated Fishing (PSMA);

.4 FAO Voluntary guidelines for flag state performance of 2014;

.5 FAO/ILO/IMO Implementation Guidelines on part B of the Code, the Voluntary Guidelines and the Safety Recommendations;

.6 FAO/ILO/IMO Code of Safety for Fishermen and Fishing Vessels, part B; and

.7 FAO Technical guidelines on best practices to improve safety at sea in the fisheries sector.

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CAPE TOWN AGREEMENT OF 2012
MSC 109/22/Add.2
Annex 25, page 7

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1.2.2 The Interim Guidance highlights the benefits of ratification or accession, as appropriate, and the flexible mechanism established for implementation, in particular on existing fishing vessels.

1.2.3 The Interim Guidance also provides useful information to stakeholders in the industry, such as fishing vessel owners, fishing vessel personnel, shipyards and equipment manufacturers, on how to comply with the requirements set forth in the Agreement. It also addresses other relevant issues, such as the human element and the guiding principles of the III Code.

1.2.4 Parties and Member States which already have a higher standard than prescribed in the Agreement, because they have implemented the provisions of the 1993 Torremolinos Protocol or a regional agreement for example, should not lower their standards when
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Protocol or a regional agreement for example, should not lower their standards when implementing the provisions of the Agreement. They should ensure that they do not take any actions which may inadvertently undermine their pre-existing higher standards.

1.3 Scope

1.3.1 The Interim Guidance provides a clear distinction between the technical requirements applicable to new and those applicable to existing vessels.

1.3.2 The Agreement offers a wide range of flexibility in terms of implementation and application. The Interim Guidance provides information on available flexibility options for both new and existing fishing vessels, and, in particular, on options that are related to progressive implementation of provisions on existing fishing vessels.

1.3.3 This Interim Guidance covers areas like definitions, interpretation and application of the articles of the Agreement and the 1993 Torremolinos Protocol as well as application,
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the articles of the Agreement and the 1993 Torremolinos Protocol as well as application, exemptions, equivalents, surveys and certificates. There is a dedicated appendix dealing with the system of survey and certification, based on the structure of the Survey guidelines under the harmonized system of survey and certification (HSSC) , 2023, adopted by resolution A.1186(33). It is noted that the Agreement is currently not a relevant instrument of the HSSC.